

IN THE UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF ARKANSAS

Select Division...

UNITED STATES OF AMERICA

PLAINTIFF

vs.

NO.

DEFENDANT

WAIVER OF APPEARANCE FOR ARRAIGNMENT
AND ENTRY OF PLEA OF NOT GUILTY
(Pursuant to Rules 10 and 43 of the Federal Rules of Criminal Procedure)

NOW COMES Defendant in the above-referenced case who, along with his/her undersigned attorney, hereby acknowledges the following:

- 1) Defendant has received a copy of the ☐ indictment, ☐ superseding indictment or ☐ misdemeanor information in this case. Defendant understands the nature and substance of the charges contained therein, the maximum penalties applicable thereto, and his/her Constitutional rights, after being advised of all of the above by his/her attorney.
- 2) Defendant understands he/she has the right to appear personally with his/her attorney before a Judge for arraignment in open court on this accusation. Defendant further understands that, absent the present waiver, he/she will be so arraigned in open court.

Defendant, having conferred with his/her attorney in this regard, hereby waives personal appearance with his/her attorney at the arraignment of this case and the reading of the indictment, superseding indictment or information, and by this instrument tenders a plea of "not guilty." The defendant understands that entry by the Court of said plea for defendant will conclude the arraignment in this case for all purposes.

Date

Defendant's Signature

Date

Counsel for Defendant's Signature

ORDER OF COURT

- ☐ The defendant's request to waive appearance at the arraignment is hereby APPROVED and a plea of not guilty is entered for the defendant effective this date.

☐ The defendant's request to waive appearance at the arraignment is hereby DENIED.

Date

Judicial Officer

cc: All Counsel of Record
U.S. Probation Office
U.S. Marshals Service
Presiding Judge